

AR.3 Inspection Sequence

The order things get looked at — and who does the looking when your county has no building department.

Before you use this document

This is a process reference, not legal advice. Arkansas adopts one building code for the whole state and forbids your city or county from adopting a different one — and then requires nobody to enforce it on a house. The building permit, the inspections and the certificate of occupancy exist only where a city or a county chose to create them, and across most unincorporated Arkansas nobody did. What does not depend on that choice is the code itself, the onsite wastewater permit, and the trade licensing rules. Confirm every item with the office that will actually handle your parcel before you rely on it. The inspection list below is the one the Arkansas residential code sets out; whether anyone performs it depends on your jurisdiction.

WHY ARKANSAS HAS NO SINGLE LIST OF INSPECTIONS

Every other document in this kit turns on the same fact, and inspections are where it bites hardest. Arkansas has **one** residential code and **three** different possible answers to "who inspects this?" — and which one you get depends on the line your parcel sits on.

Three answers to one question

Where you are	Who inspects
Inside a city that permits	The full set. Building, trades, and a certificate of occupancy — the sequence in the middle of this document
A county with a building department	The same sequence, run by the county. A minority of Arkansas counties; do not assume yours is one
Most unincorporated Arkansas	No building inspection at all. But the septic inspections still happen, the plumbing inspection may be mandatory, and the electric utility still has to be satisfied before it energizes anything

THE APPROVALS THAT HAPPEN WHEREVER YOU BUILD

These are not building inspections and they are not optional. Work them in this order.

The ones that do not depend on your county

	Item	Date	Notes
☐	Septic — notify before you start. The Authorized Agent must be notified at least 24 hours before work begins on the system (Onsite Wastewater Rules § 4.7). Date notified _____		
☐	Septic — installation inspection (Part II). Performed by the Environmental Health Specialist, or by the Designated Representative with the Authorized Agent's approval. Documentation reaches the local health unit within 5 days (§ 4.10.2). Date _____ Inspector _____		
☐	Septic — Permit for Operation (Part III). "The system shall not be used until the Permit for Operation is issued" (§ 4.10.3). Until this exists you do not have a legal toilet. Issued _____		
☐	Plumbing inspection — mandatory wherever a water, sewer or gas utility system exists. See the section below. Date _____ Result _____		
☐	Well construction report — due within 90 days of completion, must carry the well's longitude and latitude, and a copy must be provided to you on demand (17 CAR § 11-401, § 11-403). Demand it. It is your only record of depth, casing and static level. Date filed _____		
☐	Floodplain — if you are in a flood hazard area, the code requires an inspection when the lowest floor is placed and before further vertical construction (AFPC Vol. III § R109.1.3), and your local floodplain administrator will have its own requirements. Date _____ Office _____		

THE PLUMBING INSPECTION — THE MANDATORY ONE

This is the part of Arkansas law most likely to catch out someone who has read that rural Arkansas is unregulated. Plumbing is the one trade where the statute uses **shall**.

Ark. Code Ann. § 17-38-204

"(b) A plumbing installation shall not be: (1) Installed in any building within this state except in accordance with or exceeding the minimum requirements of the department; or (2) **Started without the prescribed licenses, permits, and acceptable plan review of plumbing plans and specifications when required.**

(c) A city, town, sewerage district, water district, sewer association, water association, utility gas system, or county having a system of either water, sewerage, or gas utility, or a combination of utilities, **shall establish a system of permits and inspections** to assure that the public health and safety is protected."

And where such a utility system exists but nobody was appointed to inspect, the Department of Health "**may take immediate charge and entire control of the plumbing inspection program**" (§ 17-38-204(f)(1)). The Department publishes which counties its own state plumbing inspectors cover.

Read that against the electrical statute in the next section and the asymmetry is stark. **The trigger is the utility system, not the city limit.** A rural water association serving your parcel is enough to pull the mandatory-permit language into play — so the question to ask is not "am I in a city?" but "who supplies my water, sewer or gas, and do they run a plumbing permit and inspection program?"

Settle this before the plumber starts

	Item	Date	Notes
☐	Who supplies water to this parcel — a city, a rural water association, or my own well? Answer _____		
☐	Does that body run a plumbing permit and inspection program? If it has a utility system, the statute says it shall. Answer _____		
☐	If nobody local inspects, does a state plumbing inspector cover this county? Answer _____		
☐	The plumbing code applies statewide regardless — confirm the plumber holds a current Department of Health license. License no. _____ Verified _____		

THE ELECTRICAL QUESTION — OPTIONAL, WITH A STING

Electrical permitting is local option: "Any city or county **may** establish by ordinance, rules, and regulations a system of permits and inspections for the installation, repair, and maintenance of electrical facilities and electrical work" (§ 17-28-305(c)). Where no city or county opted in, there is no electrical permit to pull.

Two things follow that people get wrong in opposite directions.

- **The code still applies.** The 2026 National Electrical Code is the adopted statewide standard for the performance of electrical work (17 CAR § 210-401). No permit does not mean no rules — it means nobody is checking on a schedule.
- **And Arkansas kept a way to check anyway.** A state electrical inspector "may require electrical work to be exposed for inspection, **including the removal of sheetrock**" where the work was not subject to inspection by a city and there is evidence of serious violations (17 CAR § 210-1101(a)). It is not a routine inspection program — but it is a real power, and it lands after your walls are closed.

The inspector you will actually meet is your electric utility

In an area with no local electrical permit program, the practical gate on your build is the utility or co-op that energizes the service. What it requires before it connects — an inspection, a licensed electrician's certification, a particular meter base — is a **business practice of that utility**, not a state rule, and it varies from one co-op to the next. We are not going to guess yours. Ask them early, in writing, because the answer determines when you can close walls.

Ask your electric provider before you rough anything in

	Item	Date	Notes
☐	Which utility or co-op serves this parcel? Name _____		
☐	What does it require before it will energize permanent service? Answer _____		
☐	Does it require inspection by a state-licensed electrical inspector? If so, who? Answer _____		
☐	Temporary construction power — what is needed, and when to apply Answer _____		

Ask your electric provider before you rough anything in

	Item	Date	Notes
☐	Service entrance specification — meter base, mast height, location Answer _____		

One protection worth knowing: a state-licensed electrician "shall not be subject to examination or licensing by any city or county in order to perform electrical work" (§ 17-28-305(a)), and whoever does inspect must themselves hold a state inspector license (§ 17-28-305(d)). A city can require a permit; it cannot make your electrician re-qualify locally.

THE BUILDING INSPECTIONS — IF SOMEBODY REQUIRES THEM

Where a permit program exists, this is the sequence, and it is worth knowing that Arkansas did **not** amend it. The list below is the Arkansas residential code's own, so a local program is working from exactly these headings.

Arkansas Fire Prevention Code, Volume III — required inspections

#	Inspection	What the code says	Cite
1	Foundation	"after poles or piers are set or trenches or basement areas are excavated" — before you pour	R109.1.1
2	Plumbing, mechanical, gas and electrical rough	"prior to covering or concealment". Note the code groups all four; in Arkansas they may be inspected by different offices, or by nobody	R109.1.2
3	Floodplain	In flood hazard areas, "upon placement of the lowest floor... prior to further vertical construction"	R109.1.3
4	Frame and masonry	"after the roof, masonry, framing... are in place" — the inspection everything else waits on	R109.1.4
5	Any other inspection	"The building official shall have the authority to make or require any other inspections to ascertain compliance"	R109.1.5
6	Final	"after the permitted work is complete and prior to occupancy "	R109.1.6

AFPC Volume III, § R109.1.1 to § R109.1.6, read September 2026 and confirmed carrying no Arkansas amendment. The certificate of occupancy provision at § R110 is likewise unamended. A local program may add inspections under R109.1.5 — insulation and sheathing are the usual additions — so ask for the office's own list at the counter.

WHEN NOBODY IS REQUIRED TO INSPECT YOU

This is the situation most buyers of this kit are actually in, and it deserves a straight answer rather than a warning label. Nothing legally obliges you to have the framing looked at. Several things make it a bad idea to skip.

- **The code still applies to the house.** The Arkansas Fire Prevention Code is adopted statewide and its residential volume reaches your dwelling by its own scope. What is missing is the inspection, not the standard — and not your liability for falling short of it.
- **You will be asked what it was built to.** Appraisers, insurers, mortgage underwriters and eventually a buyer all ask. A build with no permit, no inspection record and no photographs is worth arguing about; a build with a documented inspection log is not.
- **Hire the inspections you are not required to have.** A private third-party inspection at foundation, rough-in and frame costs a small fraction of what opening a finished wall costs. In northeast Arkansas — the New Madrid seismic country — and anywhere with the state's expansive clay, an engineered foundation is money spent on physics, which does not care whether anyone issued a permit.
- **Photograph everything before it is covered.** Trenches open, reinforcement placed, every rough-in run, insulation before drywall. Date them. This log plus that photo set is the record you will wish you had.

INSPECTION LOG — RECORD EVERY ONE

Whether or not anybody required it

	Item	Date	Result / notes
☐	Septic — 24-hour notice given Date _____		
☐	Septic — installation inspection (Part II) Date _____ By _____		
☐	Septic — Permit for Operation (Part III) Date _____		
☐	Foundation / footing Date _____ By _____		
☐	Foundation — engineer's observation, if used Date _____ By _____		
☐	Floodplain — lowest floor elevation Date _____ By _____		

Whether or not anybody required it

	Item	Date	Result / notes
☐	Plumbing rough-in Date _____ By _____		
☐	Electrical rough-in Date _____ By _____		
☐	Mechanical and gas rough-in Date _____ By _____		
☐	Frame and masonry Date _____ By _____		
☐	Insulation, before drywall Date _____ By _____		
☐	Electric utility — service energized Date _____ By _____		
☐	Final plumbing Date _____ By _____		
☐	Final electrical Date _____ By _____		
☐	Final mechanical Date _____ By _____		
☐	Final building Date _____ By _____		
☐	Certificate of occupancy, if issued here Date _____		

Everything cited here is free to read, in three places. Statutes (**Ark. Code Ann. § 14-56-202**) are at **arkleg.state.ar.us** under Arkansas Code — search the section number; the site hands off to a free Lexis viewer, so the address is not worth bookmarking. Agency rules are at **codeofarrules.arkansas.gov**, by Title: **012** Public Safety holds the Fire Prevention Code, **007** Health the wastewater rules. The building code reads free at **codes.iccsafe.org/codes/arkansas** — Volume III is residential. **One warning:** Act 841 of 2023 moved the State Fire Marshal out of the Arkansas State Police and repealed most of §§ 12-13-102 to 12-13-119, re-enacting those duties at **§ 20-22-1009**. Guides written before 2023 still cite the repealed sections. Read September 2026.